

Court No. - 3

Case :- WRIT - C No. - 29525 of 2023

Petitioner :- M/S Dharmendra Rice Mill

Respondent :- Consumer Grievance Redressal Forum,
Purvanchal Vidhut Vitrana Nigam Ltd And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

List this case on 22.09.2023 as fresh.

By the next date of listing learned counsel for the Electricity Department may take proper instructions.

Order Date :- 29.8.2023

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Today instructions have been filed which are being kept on record.

The petitioner aggrieved by the bill which was for Rs.359054.59 had filed the instant writ petition. When instructions were filed, learned counsel appearing for the Electricity Department informed the Court that as per the MRI report it was found that in the first month of 2023 there was excess usage of 125 KW of electricity; in the second month of 2023 there was an excess usage of 125 KW and in the third month again there was excess usage of 93 KW and, therefore, it has been submitted by learned counsel for the Electricity Department that after having deducted Rs.3,97,835/- which was paid by the petitioner, the bill amounting to Rs.7,56,850/- was served and, therefore, there was nothing wrong in the bill which was being charged from the petitioner.

Learned counsel for the petitioner, however, relies upon Clause 6.5 of the U.P. Electricity Supply Code, 2005

(hereinafter referred to as the "Code") and submits that when the petitioner had raised a dispute with regard to the bill then an opportunity of hearing was to be given to him and thereafter the bill ought to have been generated afresh.

Without going into the dispute as to whether the bill which has been given by the Electricity Department was correct or not, we direct that the objection, which the petitioner would file against the electricity bill impugned in the present petition, shall be decided in accordance with the provisions of Clause 6.5 of the Code within a period of one month. If the petitioner intends to raise any legal question, he may do so in the objection which he would file under Clause 6.5 of the Code.

With these observations, the writ petition stands disposed of.

Order Date :- 22.9.2023

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(Manoj Bajaj, J.)

(Siddhartha Varma, J.)